Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report
Residential Care

Licensee: Native American Rehabilitation Association of the Northwest, Inc. (NARA)
Executive Director: Jacqueline Mercer
Program Manager: Luci LaDue
Board Chairperson: Jack Cranford

Date of Unannounced: November 4, 2022
Licensing Coordinator: Robin DuVal

Other Regulatory or Accrediting Agencies: Oregon Health Authority (OHA); Indian Health Service (IHS)

Purpose: Per OAR 413-215-0101 (1) (b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings: License Renewal 02/18/2022	**Repeat Findings** **Further Action Needed?**	**Comments**
Governance of the Agency 413-215-0021(2)(f) Formally evaluate the Executive Director's performance annually. Performance evaluations were not conducted for 2020 nor 2021, however one is scheduled to occur at the upcoming Board meeting and the agency shall submit once completed. The agency shall ensure a formal performance evaluation of the Executive Director's is conducted annually.	**Yes☐ No✓**	This violation has been corrected. *No further action needed.*
Supplemental Information Provided by CCA: Documents as indicated on form titled "Required Financial Documents and Information" The agency shall submit the Tax Compliance Certificate once received.	**Yes☐ No✓**	This violation has been corrected. *No further action needed.*
Supplemental Information Provided by CCA: All required policies and procedures as identified in the "Umbrella Rules". The agency shall update the following policies and procedures pursuant to each OAR: • Rights of Children to include all rights in OAR 413-215-0046(1)(a-j) • Grievance Procedures in OAR 413-215-0046(2) • Personnel in OAR 413-215-0061	**Yes☐ No✓**	This violation has been corrected. *No further action needed.*

• Privacy in OAR 413-215-0066 • Discipline, Behavior Management & Training, and Suicide Prevention in OAR 413-215-0076: Documents titled Non-Seclusion and Restraint; Suicide Prevention and Precautions (shows draft); Positive Discipline and Behavior Management.		
Supplemental Information Provided by CCA: SB710 Requirements: Policy and Procedures; notifications to guardian and children in care. OAR 413-215-0077(8)(e), (11)(e) and OAR 413-215-0078(1). The agency shall submit the policy and procedures, and notifications required to clients and guardians utilizing the resources provided by this licensor. The agency shall ensure clients and guardians receive the notification at intake and twice yearly thereafter, and document having provided it.	**Yes☐ No✓**	This violation has been corrected. *No further action needed.*
Personnel Files 413-215-0061(1)(a) & (3)(c) Background check completed and documented. The agency shall ensure background checks are completed upon hire and at position changes; and retain documentation in the employee personnel file.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*
Personnel Files 413-215-0061(3)(d) Annual performance evaluations. The agency shall ensure annual performance evaluations are conducted and documented in the employee personnel file.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*
New Employee Orientation – Umbrella Requirements (30 days) 413-215-0061(4)(e) & (5)(a) to (c) Mandatory reporting that includes: (a) legal definition of child abuse ORS 419B.005, Oregon Laws 2016, chapter 106, section 36 (b) legal responsibility to immediately report (c) legal responsibility to report is personal to the employee The agency shall ensure mandatory abuse reporting training occurs within 30 days of hire.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*
Consents 413-215-0576(1)(e) Allow access as defined in 413-215-0091 & 0101. The agency shall add the consent to allow access on the "consent and acknowledgement" form already in use and utilize the updated form in new admission materials going forward.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*
Information about Children in Care 413-215-0581(1)(a) Summary sheet contains the following: The name, gender, date of birth, religious preference, and previous address.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*

Religious preference was not consistently documented on the summary sheet. The agency shall ensure an entry is noted for religious preference.		
Case Management 413-215-0581(3)(f) Incident Reports. Incident Reports are completed and stored electronically in a shared drive, although not organized by youth nor retained in each youth file. The agency shall ensure completed incident reports are retained in each youth record.	**Yes☐ No✓**	Records were reviewed and this requirement was met. *No further action needed.*
Financial Records 413-215-0581(4) Records contain date, amount, source, purpose, signatures. Youth signatures are inconsistently captured on the form. The agency shall ensure the form is completed for each transaction and signatures obtained per entry.	**Yes✓ No☐**	Youth and staff signatures are consistently captured; however transactions are not thoroughly documented. The agency shall ensure each transaction is thoroughly completed. **Repeat finding.** • ***This requirement is unmet and further corrective action is needed.***
Records and Documentation 413-215-0071(3)&(4) Uniform in organization, readily identifiable and accessible, current, and complete, containing all required info. No eraser tape or white out. Personnel and youth records are incomplete missing items noted above.	**Yes☐ No✓**	This violation has been corrected. *No further action needed.*

New Findings from Site Visit
None

Interview Summary
Two youth, ages 17, who have been in program approximately 2 months, were individually interviewed. Both reported feeling safe and gave personal examples of how this program is benefiting them. The food is good and plentiful. They described various activities and outings the agency provides. They receive medications as prescribed. Peer relationships are average. The school program is great. They have regular contact with people on their approved contact list. Staff are trusting and model healthy recovery tools. They meet regularly with their therapist. Both reported liking the program and how they take care of people, find solutions to problems, provide second chances to try again and provide an overall sense of community. One youth reported the agency could improve on staff consistency of what's allowed and not allowed because it makes it confusing to youth sometimes. During the review, I spoke with agency management, and they shared that the census is increasing since pre-COVID, wages were increased including shift differentials and bonuses, and personnel records will be changing to electronic records soon.

Observations
Upon entrance, COVID protocols were in place with temperature checks, questionnaire, and sign-in sheets as well as face masks. Youth were observed in the milieu and later in the classroom and appeared to be comfortable and on task. The environment was welcoming, in good condition and clean. The kitchen and dining room were clean, and plenty of food was observed in the refrigerators, freezers, and pantry. Bedrooms were clean with individualized décor.

Corrective Actions and Timeframes: Please submit the following to verify compliance.
Within 45 days of receipt of this report **NARA** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents are to be emailed directly to ROBIN.M.DuVal@dhsoha.state.or.us.

Licensing Coordinator's Signature: _____ Date: 11/29/2022

Manager Review: _____ Date: 11-29-2022